

the Act apply to moneys paid into Court under *Acts of Parliament* directing the moneys to be invested on securities other than those mentioned in the Act under consideration; [but the question has been finally settled in favour of the application of the powers (c).]

10. **Service.**—Applications under Rule 17 of Order 22 need not be served on the trustees of the fund, but such service is necessary under Rule 18 of the same Order (d).

11. **Consent.**—Powers of investment are generally to be exercised with the *consent* of the tenant for life, and it has been doubted whether the several Acts enlarging the power of trustees apply where such consent is required. It is conceived, however, that the effect of the Acts is to authorise trustees to invest on the extended securities, provided the investments be accompanied with all the conditions required for investment upon the securities specified in the settlement. Any other construction would be a trap, into which many trustees must already have fallen.

[12. **Settled Land Act.**—By the combined operation of sects. 21 and 32 of the Settled Land Act, 1882, all moneys in Court which are liable to be laid * out in [*312] the purchase of land to be made subject to a settlement may be “invested on Government securities, or on other securities on which the trustees of the settlement are by the settlement or by law authorised to invest trust money of the settlement, or on the security of the bonds, mortgages, or debentures, or in the purchase of the debenture stock of any railway company in Great Britain or Ireland incorporated by special Act of Parliament, and having for ten

(c) [*Ex parte* St. John Baptist College, Oxford, 22 Ch. D. 93; see] *Re Birmingham Bluecoat School*, 1 L. R. Eq. 632; *Re Wilkinson's Settled Estate*, 9 L. R. Eq. 343; *Re Cook's Settled Estate*, 12 L. R. Eq. 12; *Re Thorold's Settled Estate*, 14 L. R. Eq. 31; *Reading v. Hamilton*, W. N. 1872, p. 91; *Re Taddy's Settled Estates*, 16 L. R. Eq. 532; [*Re Fryer's Settlement*, 20 L. R. Eq. 468; *Re Foy's*

Trusts, 23 W. R. 744; *Re Southwold Railway Company's Bill*, 1 Ch. D. 697; *Jackson v. Tyas*, 52 L. J. N. S. 830; *Secus*,] *Re Shaw's Settled Estates*, 14 L. R. Eq. 9; *Re Boyd's Settled Estate*, 21 W. R. 667; *Re Vicar of St. Mary, Wigton*, 18 Ch. D. 646; *Ex parte Rector of Kirksmeaton*, 20 Ch. D. 203.]

(d) *Re Adams's Will*, W. N. 1868, p. 58; 17 L. T. N. S. 641.